STD 8 SOCIAL SCIENCE

SURE A PLUS NOTES

CONSTITUTION OF INDIA: RIGHTS AND DUTIES

1."Without equality, liberty would produce the supremacy of the few over the many. Equality without liberty would kill individual initiative. Without fraternity, liberty and equality could not become a natural course of things"- Who said it

@ Dr. B. R. Ambedkar.

2.What is right?

Rights are those that are accepted by society in terms of claims made and recognised and enforced by the state through law.

It is the responsibility of democratic systems to ensure that individuals have rights.

These should be implemented by the government through law

3.Define Fundamental Rights?

$ There are certain fundamental rights that are internationally recognised as human rights

$ That are essential to the dignity, liberty and survival of citizens in a democratic system.

$ Fundamental rights are such rights recognised, protected and enforced by states.

$ Fundamental Rights are those rights which cannot be denied to a person at any cost

4.In which part of our constitution as the Fundamental Rights are included? (First Term Model Qn Paper)

* Part III of our constitution

5.Complete the flow chart related to the time line of Fundamental Rights. (First Term Exam)

Magna Carta – 1215. The first official document in the world to refer to civil rights and liberties.
United States Bill of Rights - 1789 Bill of Rights mentioned in the world's first written constitution
Declaration of Human Rights after the French Revolution (Declaration of the Rights of Man and of the Citizen - 1789) Bill of Rights defining human rights that influenced the nations of the world.
United Nations' Universal Declaration of Human Rights (Universal Declaration of Human Rights-1948) Bill of Rights issued by the United Nations for implementation by all member states.

6.Several factors influenced the constitution-makers to include Fundamental Rights in the Indian Constitution. What are they? (First Term Model Qn Paper)

> There are several factors that influenced the framers of the Constitution to include Fundamental Rights in the Constitution of India.

> The main factor is the denial of rights that the Indian people had to suffer during the British rule.

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> The values upheld by the freedom struggle and the ideas of the Indian Renaissance Movement are other factors that influenced the fundamental rights in the Constitution.
> The rights mentioned in the constitutions of other countries and the Bills of Rights which are the precursors of fundamental rights have influenced the fundamental rights in our Constitution

7.Why are certain rights known as Fundamental Rights? (Third Term Model Qn Paper)

< Cannot be denied to a person at any cost.
< Inevitable for the holistic development of an individual.
<Very essential for leading a dignified life.
< So the Fundamental Rights and their protection are very important in a democratic society.

8. Which country's Constitution influenced the formation of Fundamental Rights in India?

- The Bill of Rights in the American Constitution

9. What are the Fundamental Rights in the Constitution of India?

⊙ Right to Equality. ⊙ Right to Freedom. ⊙ Right against Exploitation .
⊙ Right to Freedom of religion . ⊙ Cultural and educational Rights.
⊙ Right to Constitutional Remedies

10.What are the ideas included in the Right to equality? (Third Term Model Qn Paper)

➢ Ensure equality before law.
➢ Prohibition of discrimination on the basis of caste, religion, race, sex, place of birth, etc.
➢Ensure equality of opportunity in public employments.
➢ Abolition of untouchability.
➢ Abolition of Titles.

11.Which article of the Constitution explains the right to liberty? Write any two rights explained in the right to liberty. Which is an important fundamental right? (First Term Model Qn Paper)

Or Which are the different types of freedom given in theArtice 19 ?

@ Freedom of speech and expression
@ Freedom to assemble peacefully, without arms.
@ Freedom to form associations.
@ Freedom to travel anywhere in India
@ Freedom to reside anywhere in India
@ Freedom to carry on any occupation, trade, or business

12.What are the other rights mentioned in the Right to Freedom

Apart from these, rights such as right to education, right to life and individual freedom are enshrined in Articles 20 to 22.
These are subject to reasonable restrictions in the context of national integrity, sovereignty and security.

12.Elucidate Right to Education Act-2009 (First Term Exam) (Second Term Exam)

$ Education was declared a fundamental right under Article 21A by the 86th Constitutional Amendment Act in 2002.
$ In 2009, Parliament passed the Right to Education Act.
$ The Act came into effect in April 2010.
$ This Act ensures free, compulsory and quality education for all children between the age

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group of six and fourteen.

13.How does the right against exploitation protect the citizens?

> The Right against exploitation is concerned with the prohibition of the exploitation and equip the individuals for leading a dignified life.

> Artice 23- Forced labour and trafficking human beings are prohibited.

>Artice 24-Employment of children in factories and other dangerous sectors are forbidden.

14.What do you mean by Right to Freedom of Religion?

• The Constitution allows everyone in India the freedom to profess, practise and propagate any acceptable religion.

•This right includes the freedom to act according to their conscience.

•The right to freedom of religion guarantees equal treatment and equal protection to all religions.

15.How the Cultural and educational rights help to protect the interest of minorities?

Or The Right to Education Act is different from Cultural and Educational Rights. Elucidate. (First Term Exam)

◎ Cultural and educational rights have been included in the Constitution for the protection of the interest of the minority sections.

◎Protection of their language, script and culture.

◎Religious and linguistic minorities have the right to establish and administer educational institutions of their choice.

16.Who described the Right to Constitutional Remedies as the heart and soul of the Indian Constitution? Mention the ways to restore the Right to Constitutional Remedies. (First Term Exam)

Or Among the Fundamental Rights, the Right to Constitutional Remedies is considered the most important. Why?

(First Term Model Qn Paper) (second Term Model Qn Paper)

➢ The Constitution proposes remedial measures if the Fundamental Rights are violated.

➢ This is known as the Right to constitutional remedies.

➢ As per this right, if the Fundamental Rights are violated an individual can approach either the

➢ Supreme Court [Artice 32] or the High Courts [Artice 226] for enforcing them.

➢ Writs are orders and directions issued by the Supreme Court or the High Courts for the protection of fundamental rights as per above mentioned articles.

17.What aspects of social life do the directive principles of state policy touch upon? List them.

@ *It is* included for achieving Socio-economic justice .

@ Its aim is to establish a welfare state by ensuring the welfare and progress of all sections of the people.

@ These are not enforceable with the support of the courts.

@ Articles 36 to 51 of Part IV of the Constitution contain directive principles.

@ The governments should follow it in administration and legislation.

18.The directive principles of state policy can be classified into three categories, namely, liberal ideas, socialist ideas and Gandhian ideas.

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Or Evaluate the contemporary relevance of the Gandhian principles included in the Directive Principles of State Policy. (second Term Model Qn Paper)

Liberal Ideas	Socialist Ideas	Gandhian Ideas
*Promote international peace and security *Uniform Civil Code for citizens *Equal justice and free legal aid *Provision of care and education for children under six years of age *Environment, livestock and wildlife conservation	*Wage for livelihood *Equal pay for equal work for men and women *Participation of workers in the management of industries *Right to employment *Ensure regular and humane working conditions and maternity benefits	*Organise Gram Panchayats *Fostering cottage industries * Agriculture and animal husbandry *Prohibition of consumption of intoxicating drinks and drugs injurious to health *Uplift of Scheduled Castes and Scheduled Tribes and other weakernsections

19.Identify and write the differences between fundamental rights and directive principles

Both are complementary.

Fundamental rights limit the powers of the government while directives compel the government to do certain things.

Fundamental rights mainly protect the rights of individuals.

But ensure the welfare.

It can be reinstated through the courts.

One can approach the Supreme Court or High Court when fundamental rights are violated.

It is not possible to approach the court if the directive principles are violated.

In the process of democracy, fundamental rights implement political democracy while guiding principles realise socio-economic democracy.

20."Every Indian must remember that he is an Indian and he has every right in his country but with certain duties" Who said it

$ Sardar Vallabhbhai Patel

21.Which w as the committee appointed by the Central Government in 1976 to submit recommendations on the fundamental duties of citizens.

Elucidate its importance. (Second Term Exam)

> The Sardar Swaran Singh Committee was appointed by the Central Government in 1976 to submit recommendations on the fundamental duties of citizens.

> Article 51A of Part IVA ,deals with Fundamental Duties .

> It was included in the Constitution as part of the 42nd Constitutional Amendment in 1976.

> Now eleven duties embedded in the constitution.

22."Rights and duties are two sides of the same coin." List Fundamental Duties enshrined in the Constitution of India. (second Term Model Qn Paper)

* To abide by the Constitution and respect its ideals and institutions,

the National Flag and the National Anthem;

* To cherish and follow the noble ideals which inspired our national struggle

for freedom;

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* To uphold and protect the sovereignty, unity and integrity of India;
* To defend the country and render national service when called upon to do so;
* To protect and improve the natural environment including forests, lakes, rivers, wild life and to have compassion for living creatures;
* To develop the scientific temper, humanism and the spirit of inquiry and reform;
* Who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between age of six and fourteen years.

23."Fundamental Rights, Directive Principles and Fundamental Duties together ensure a balanced democracy." Explain this statement with suitable examples. (second Term Model Qn Paper)

A "balanced democracy" is achieved when individual freedoms are protected, social welfare is promoted, and citizens recognize their responsibilities.

Fundamental Rights:Fundamental Rights (Part III) protect citizens from the arbitrary use of state power. They ensure that every individual has the freedom to live with dignity.Example: The Right to Equality (Article 14)

Directive Principles : focus on the community. They are guidelines for the government to create a "Welfare State."Example: The directive for Equal pay for equal work or providing Free legal aid

Fundamental Duties :For every right one enjoys, there is a corresponding duty to the nation.Example: The duty to protect the environment or safeguard public property.

24.Anu is studying in the fourth standard. His friend Babu, a 10-year-old boy is going to work in a hotel instead of going to school. What rights of Babu are denied here?

Free and compulsory primary education is denied here(Article21A).Also protection from child labour (Artice 24) also denied here.

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All the Very Best Dear Students

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